

## 25STCV13526 25STCV13526

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-06-30

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CHAMAMAS PINIJCHAI VS TRUSTEE OF THE SURVIVOR'S TRUST OF THE  
DEMERS FAMILY TRUST

DEMURRER TO THE THIRD AMENDED COMPLAINT

Date

of Hearing: June 30, 2026 Trial Date: None

set

Department: 529 Case No.: 25STCV13526

Moving

Party: Defendant Trustee of the

Survivor's Trust, of the Demers Family Trust

Responding

Party: Plaintiff Chamamas Pinijcai

Meet

and Confer: Yes. Chao Decl.

BACKGROUND

On May 8, 2025, Plaintiff Chamamas

Pinijchai filed a complaint against Trustee of the Survivor's Trust of the

Demers Family Trust. On May 9, 2025, Plaintiff filed a First Amended Complaint

asserting causes of action for quiet title and declaratory relief. Upon

sustaining the demurrer to the FAC, Plaintiff filed a Second Amended Complaint

on November 26, 2025, adding a cause of action for breach of contract.

On March 20, 2026 Plaintiff filed a  
Third Amended Complaint for declaratory relief and breach of contract.

[TENTATIVE]

RULING

Defendant Trustee of the  
Survivor's Trust of the Demers Family Trust's Demurrer to the Third Amended  
Complaint is SUSTAINED WITH LEAVE TO AMEND, IN PART.

DISCUSSION

Defendant demurs to the Third Amended Complaint on the grounds the  
complaint and each cause of action therein fails to state facts sufficient  
against Defendant and is uncertain, ambiguous and unintelligible.

A demurrer for sufficiency tests whether the complaint states a  
cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When  
considering demurrers, courts read the allegations liberally and in context. In  
a demurrer proceeding, the defects must be apparent on the face of the pleading  
or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004)  
116 Cal.App.4th 968, 994.) "A demurrer tests the pleadings alone and not the  
evidence or other extrinsic matters. Therefore, it lies only where the defects  
appear on the face of the pleading or are judicially noticed. (Code Civ. Proc.,  
§§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege  
ultimate facts sufficient to apprise the defendant of the factual basis for the  
claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714,  
721.) A "demurrer does not, however, admit contentions, deductions or  
conclusions of fact or law alleged in the pleading, or the construction of  
instruments pleaded, or facts impossible in law." (S. Shore Land Co. v.  
Petersen (1964) 226 Cal.App.2d 725, 732 (internal citations  
omitted).)

Declaratory Relief

Defendant demurs to the first cause of action for declaratory  
relief on the grounds it fails to state facts sufficient to constitute a cause  
of action and is unintelligible and uncertain.

Code of Civil Procedure section 1060 provides that a person may bring an action for declaratory relief if he or she “desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property . . . .” (CCP § 1060.) A request for declaratory relief may be brought alone or with other relief. (See *id.*)

Defendant argues the video of Mr. Demers is not a writing “which transfers title of the Carson Property to Plaintiff.” The statements simply express Mr. Demers plans for the future, and what he believes needs to be done in order to effectuate same. They do not, however, convey title to Plaintiff or create a contract between Demers and Plaintiff.

The court agrees Plaintiff has not sufficiently alleged a claim for declaratory relief. While declaratory relief may be proper under an oral contract to convey realty, the complaint must allege possession along with improvements to the property to prevent the statute of frauds from defeating the intended transfer. (See *Andreotti v. Andreotti* (1964) 224 Cal.App.2d 533; *Sutton v. Warner* (1993) 12 Cal.App.4th 415.) The complaint alleges Plaintiff was living at the Carson Property up and until she was kicked out but does not allege improvement. If Plaintiff is able to allege facts sufficient to show Plaintiff’s possession and any improvements made in reliance on the oral promise, then declaratory relief would allow the court to determine the parties’ respective rights.

Based on the foregoing, the demurrer is sustained with leave to amend.

#### Breach of Contract

Defendant demurs to the second cause of action for breach of contract on the grounds Plaintiff fails to state facts sufficient to constitute a cause of action and it is uncertain.

“The standard elements of a claim for breach of contract are: ‘(1) the contract, (2) plaintiff’s performance excuse for nonperformance, (3) defendant’s breach, and (4) damage to plaintiff therefrom.’” (*Wall Street Network, Ltd. v. New York Times Co.* (2008) 164 Cal.App.4th 1171, 1178.)

Defendant argues the video does not set forth any contractual terms – there was no agreement or meeting of the minds, no consideration, and no terms that bind the Trustee of the trust do anything.

The court finds the allegations sufficient for the purposes of a demurrer. The complaint alleges in exchange for Plaintiff's care, service and companionship, Dr. Demers agreed to transfer title to the Carson Property and to transfer trust funds in the amount of \$200,00 to Plaintiff. However, Defendant allegedly breached the agreement (as trustee is the holder of title to Carson Property and trust fund in the amount of \$200,00) by failing to perform the terms of the contract. As a result, Plaintiff suffered damages. Accepting these allegations as true, as required on demurrer, they are sufficient to state a viable claim.

Based on the foregoing, the demurrer is OVERRULED.